

injunctive relief does not issue.”

Plaintiff presents no evidence to support his motion. For example, there is no declaration from Plaintiff explaining how he will suffer irreparable injury if an injunction does not issue. As noted by Defendants, there “are no new declarations, no new factual allegations, no evidence of recent threats, and no indication that any Defendant has acted improperly since the original TRO was dissolved.” (Opp. at 5:8-9.) There is no declaration from Plaintiff at all. Instead, there is a declaration from Plaintiff’s counsel which merely attaches copies of prior court filings and orders.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if statements in the points and authorities could be considered evidence, “the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmty. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

While Plaintiff did file a declaration in support of the original *ex parte* application in September 2024, Plaintiff does not even reference that document as support for the current motion. Even if he had, the Court would not consider it given that over one year has passed since that time. Plaintiff would need to provide a current declaration explaining his position as of the time of the filing of the instant motion.

In the opposition papers, Defendants set forth several legal arguments showing that Plaintiff is not likely to prevail on the merits – thereby undermining any request for a TRO. Plaintiff’s reply, which is optional, was due on or before Friday, December 12. (Cal. Code Civ. Proc. § 1005.) No reply was filed by that date, and no reply has been filed as of the drafting of this tentative ruling.

It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to respond to Defendant’s arguments, Plaintiff concedes the contentions and arguments in the opposition papers.

Conclusion

Plaintiff’s Motion is **denied**.

7. 9:00 AM CASE NUMBER: C24-03015

CASE NAME: ALY SY VS. ZUBAIR ALI

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT AGAINST CROSS-COMPLAINANT
FILED BY:**

TENTATIVE RULING:

The unopposed motion for leave to file a Cross-Complaint for indemnity and contribution against

Defendant Zubiari Sadiz and ROES 1-20 is granted.

8. 9:00 AM CASE NUMBER: C25-00585
CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: ANTIOCH DUNES HEALTHCARE, LLC
TENTATIVE RULING:

Introduction

Before the Court is Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute's ("Defendant" or "Delta View") motion for an order compelling binding arbitration of all disputes between Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually and the Defendants, on the grounds that there is a contractual agreement to arbitrate such disputes. Additionally, Defendant requests that the Court stay the instant action as to all Defendants. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

For the reasons described below, Antioch Dunes Healthcare, LLC dba Delta View Post Acute's Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On March 3, 2024, Plaintiffs Victor Martinez by and through his Successor-in-Interest, Carmen Martinez and Carmen Martinez, individually, filed a Complaint for Damages against Defendant Antioch Dunes Healthcare, LLC dba Delta View Post Acute for the following causes of actions: 1. Statutory Elder Abuse/Neglect; 2. Negligence; 3. Violation of Health & Safety Code § 1430; and 4. Wrongful Death. (Declaration of Herman Singh (hereinafter "Singh Decl."), ¶ 2, Ex. A.)

Between March 17, 2025, and March 27, 2025, Defense counsel met and conferred with Plaintiffs' counsel regarding the existence of a valid arbitration agreement. In subsequent communications, counsel for the parties were unable to come to an agreement regarding the propriety of arbitration in this matter. (Singh Decl., ¶ 3.)

Plaintiff filed their Complaint on March 3, 2025. Defendant promptly filed its Petition to Compel Arbitration on April 4, 2025. (Request for Judicial Notice No. 1; Singh Decl., ¶ 4.) Defendant notified Plaintiff that Defendant would be withdrawing and refileing the Petition on August 1, 2025, and refiled the Petition on August 8, 2025. (RJN No. 1; Singh Decl., ¶ 7.) No discovery or any pursuit of litigation occurred during the seven days it took to refile the Motion to Compel Arbitration.

Factual Background

This case involves numerous allegations of neglect suffered by plaintiff Victor Martinez (hereinafter "Plaintiff" or "Mr. Martinez") while he resided at defendant skilled nursing facility Antioch Dunes